DEED OF PARTITION BETWEEN CO-OWNERS

Shri…….s/o……r/o…….. (hereinafter called the First Party), and Shri ……..s/o…… r/o …….. (hereinafter called the Second Party) and

Shri…….s/o……r/o…… (hereinafter called the Third Party) do hereby execute this DEED OF PARTITION between themselves on this ……. day of …….

WHEREAS the aforesaid parties are the co-owners in equal shares of the properties mentioned in the Schedules 1, 2, and 3 of this deed of partition.

WHEREAS the aforesaid properties were purchased by the aforesaid parties on……..from

Shri…… s/o …… r/o ……. vide sale-deed dated……..and registered on……

AND WHEREAS the aforesaid parties have mutually agreed to divide the said properties amongst themselves in order to avoid any future dispute with regards to the said properties.

AND WHEREAS the aforesaid parties have agreed to assign the land comprising an area of……..bearing No…… situated at……,mentioned and mapped in Schedule 1 to first party and the land comprising an area of …….. situated at……..bearing the No……detailed in Scheduled 2 to this deed to second party and the land along with the trees standing thereon comprising an area of…….situated at……bearing No……detailed in Schedule 3 to this deed to the third party.

The aforesaid parties have also mutually agreed that the aforesaid parties become sole and absolute owners of the allotted properties.

AND WHEREAS the aforesaid parties have taken possession of the properties assigned to them as aforesaid.

NOW THIS DEED WITNESSETH AS FOLLOWS:

1. That in consideration of the right title and interest made in accordance with the aforesaid terms of this deed and in accordance with the conditions hereinafter mentioned release and relinquish their interest in the properties allotted to other parties and each of the said parties hereby conveys to each other's party separately his right, title and interest therein so as to constitute each party to this deed the sole and absolute owner of demands of other thereto or concerning therewith, as from the date of this deed.
2. That the original deed of partition shall be retained by first party, at true copy thereof signed by each party has been delivered to the other said parties who shall be entitled to require production of the original from the first party before any Court or public office or Bank or Insurance Company etc. if so desired.
3. That the parties have agreed that all taxes and public charges in respect of the allotted properties shall be borne by the parties themselves.

4. That each party will execute such deed or do all other acts necessary which may be requisite for more effectually assuring the party so requiring and at his cost, in the manner required by law and appear before revenue or other authorities to have mutation effected in respect of the party assigned to the party concerned.
5. That the valuation of the entire property under this partition-deed is fixed at Rs._____.

IN WITNESS WHEREOF the aforesaid parties have signed this deed of partition on the day and year first before written.

Witnesses :

1……..

2……..

Sd/-

1. First party

2. Second party

3. Third party

Schedule-1

Schedule-2

Schedule-3

10. **RELINQUISHMENT / RELEASE:**

Relinquishment / release is one of the modes of transfer of property. By way of relinquishment deed, one or more joint owner can give up /relinquish /release his /their share in an immovable property to one or more joint owners. A release of rights in immovable property should be by a written deed and registered. Relinquishment of rights may be with consideration or without consideration.

RELINQUISHMENT DEED

This Deed of relinquishment is made and executed on this--- day of -----, 20---
by
_____S/o _____and. _____ Daughter of _____ residents of _____ hereinafter called "the EXECUTANTS/RELEASORS.
IN FAVOUR OF
_____W/o _____resident of_____
hereinafter called the "RELEASEE".

WHEREAS _____son of Shri. _____resident of_____ was the absolute owner of Entire Second Floor of

Freehold Property bearing No. _____ built on Plot No. _____, in Block No_____Built on a plot of land measuring _____, situated at _____ by virtue of Gift Deed registered as document no. _____in Add____Book No____Vilume No. _____ on pages _____to_____ dated _____, in the office of Sub-Registrar, _____ (hereinafter called the said portion of the said property).

AND WHEREAS the said _____intestate died on _____(Death Certificate enclosed) leaving behind the following legal heirs:-

SL. No. Names Age Relationship Address

1)

II)

III)

WHEREAS consequent upon the death of Shri _____ 1/3rd share each in the _____of Freehold property bearing No. _____ built on Plot No.____In Block No. _____, built on a plot of land measuring _____, situated at_____, has devolved upon the above legal heirs.

NOW THIS DEED WITNESSETH AS UNDER :-

Pursuant to their wish, as mentioned above, the Executants/Releasors out of natural love and affection and without any monetary consideration, hereby wish to release and relinquish their_____share each in the_____ of Freehold property bearing No. _____ built on Plot no_____, in Block No _____, built on a plot of land measuring _____, situated at _____, in favour of. _____wife of _____as mentioned above, and hereby affirm and declare that they and their legal heirs shall have no claim, right, lien or interest in the entire _____ of the aforesaid property and the same shall vest absolutely in the said. _____wife of _____, the Releasee.

IN WITNESS WHEREOF , the Executants/Releasors and the Releasee have signed this Deed of Relinquishment on the day, month and year first mentioned above in the presence of the following witnesses:-

(----------)
RELEASEE

(----------)
EXECUTANTS/RELEASORS

WITNESSES:-

1.

2.

11. EXCHANGE:

When two persons mutually transfer the ownership of one thing for the ownership of another, neither thing nor both things being money only, the transaction is called an Exchange. A transfer of property in completion of an exchange can be made only in the manner provided for the transfer of such property by sale. The difference between a sale and an exchange is that in a sale the price is paid in money while in an exchange it is paid in another property by way of barter. Sale is always for a price, which means money or the current coin of the realm while no price is paid in an exchange, there being only a transfer of one specific property for another.

EXCHANGE DEED

(Simple deed of exchange where the value of properties are of the same value)

This deed of Exchange is executed on the _____ day of _____ 20__ by Sri./Smt._____, S/o./W/o._____, and aged _____ years, residing at_____ hereinafter referred to as the PARTY OF THE FIRST PART.

And

Sri./Smt. _____S/o./W/o._____, aged _____ years, residing at_____ hereinafter referred to as the PARTY OF THE SECOND PART.

Whereas, the term the First Party and the Second Party unless repugnant to the context shall mean and include their representatives heirs, successors, executors, administrators, trustees, legal representatives and assigns.

Whereas, the First Party herein, is the sole and absolute owner of immovable property bearing No._____ situated at _____ more fully described in the First Schedule hereunder written and hereinafter called the First Schedule property.

Whereas, the First Party is the absolute owner, having acquired the property, by _____ and since then the First Party has been in possession and enjoyment of the First Schedule property and paying taxes and levies thereon, as sole and absolute owner thereof.

Whereas, the Second Party herein, is the sole and absolute owner of immovable property bearing No._____ situated at _____ more fully described in the Second Schedule hereunder written and hereinafter called the Second Schedule property.

Whereas, the Second Party is the absolute owner, having acquired the property, by_____ and since then the Second Party has been in possession and enjoyment of the Second Schedule property and paying taxes and levies thereon, as sole and absolute owner thereof.

Whereas it has been agreed between the parties hereto to exchange their respective properties viz. First scheduled property written hereunder unto and to the use of the Second Party in consideration of the Second Scheduled property here under written unto the use of First Party.

Whereas the market value of the First Schedule property is assessed at Rs._____.

Whereas the market value of the Second Schedule property is assessed at Rs._____

Whereas the parties hereto have now agreed to execute this deed of exchange.

NOW THIS DEED WITNESSETH that in pursuance of the aforesaid agreement and in consideration of the party of the Second Part conveying to the party of the First Part the Second Schedule property hereunder written and Second Party hereby grant and convey by way of exchange unto the party of the First Part absolutely and forever all that piece and parcel of the property described in the Second Schedule together with all the liabilities, easements, profits, privileges, advantages, rights, members and appurtenances whatsoever of the said Second Schedule property and also together with all the deeds, documents, writings and other evidences of title relating to the said Second Schedule property and all the estate, right, title, interest, use, possession, benefit, claim and demand whatsoever, both at law and in equity of the party of the First Part TO HAVE AND TO HOLD the said Second Scheduled property hereby granted and conveyed by way of exchange unto and to the use and benefit of the party hereto of the First Part subject to payment of all rents, taxes, assessments, rates, duties, now chargeable upon the same or which may herein after become payable in respect thereof to the local authority.

NOW THIS DEED WITNESSETH that in pursuance of the aforesaid agreement and in consideration of the party of the First Part conveying to the party of the Second Part the First Schedule property hereunder written and First Party hereby grant and convey by way of exchange unto the party of the Second Part absolutely and forever all that piece and parcel of the property described in the First Schedule together with all the liabilities, easements, profits, privileges, advantages, rights, members and appurtenances whatsoever of the said First Schedule property and also together with all the deeds, documents, writings and other evidences of title relating to the said First Schedule property and all the estate, right, title, interest, use, possession, benefit, claim and demand whatsoever, both at law and in equity of the party of the Second Part TO HAVE AND TO HOLD the said First Schedule property hereby granted and conveyed by way of exchange unto and to the use and benefit of the party hereto of the Second Part subject to payment of all rents, taxes, assessments, rates, duties, now chargeable upon the same or which may herein after become payable in respect thereof to the local authority.

Whereas each of the parties of the First and the Second Part mutually covenants with the other
that;

(a) He has now in himself, absolute right, full power and absolute authority to grant the scheduled
(b) property hereby granted or assured or intended to be by him unto and to the use of the other party in manner aforesaid.
(c) That the other party shall and may at all times hereafter peacefully and quietly enter upon have occupy, possess and enjoy the schedule property conveyed to him and receive the profits thereof and for his own use and benefit without any suit, eviction, interruption, claim or demand whatsoever from or by him the covenanting party or his heirs, or any of them or